

SENATE No. 1927

The Commonwealth of Massachusetts

PRESENTED BY:

Michael D. Brady

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the separation of agricultural land for renewable energy purposes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>1/16/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/16/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>1/17/2025</i>

SENATE No. 1927

By Mr. Brady, a petition (accompanied by bill, Senate, No. 1927) of Michael D. Brady, Kathleen R. LaNatra, Christopher Richard Flanagan and Norman J. Orrall for legislation relative to the separation of agricultural land for renewable energy purposes. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1889 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the separation of agricultural land for renewable energy purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 17 of chapter 61A of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by inserting, after the first sentence, the following sentence:-

3 Notwithstanding the provisions in this section, if, by conveyance or other action of the
4 owner thereof, a portion of land previously used for agricultural purposes, which is valued,
5 assessed and taxed under the provisions of this chapter is separated for the purpose of producing
6 renewable energy, as defined in section 1 of chapter 164 of the General Laws, the land so
7 separated shall not be subject to liability for conveyance or roll-back taxes applicable thereto.